IN THE HIGH COURT OF ORISSA AT CUTTACK

ABLAPL No.12008 of 2026
CNR No. ODHC010799792026

Hemanta Kumar Bhoi **.....** ***Petitioner***

Represented by Adv. - Rajesh Ranjan Sahoo

-versus-

State Of Odisha **.....** ***Opposite Party***

Represented by Adv. - Sachidananda Nayak, ASC

CORAM:
THE HON'BLE MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Virtual Mode.

2. Heard learned counsel for the Petitioner and learned counsel for the State. Perused the Anticipatory Bail Application as well as the F.I.R.

3. This is an application under Section 482 of the BNSS filed by the Petitioner for anticipatory bail, involving offence punishable under Sections 318(4)/336(3)/318(2)/61(2) of BNS in G.R. Case No.712 of 2025 in the Court of learned SDJM, Kuchinda,

Sambalpur, arising out of Jamankira P.S. Case No.170 of 2025.

4. It is stated by learned counsel for the Petitioner that the persons, who have been named in the FIR, have already been released on bail in ABLAPL No.2950 of 2026. A coordinate Bench of this Court vide order dated 23.04.2026 has been pleased to permit the Petitioners to surrender and move for bail. He further submitted that such Petitioners, who have moved this Court earlier, have already been enlarged on bail. Learned counsel for the Petitioner at this juncture submitted that the Petitioner does not want to press this application and seeks liberty to surrender before the court below and move an application for bail.

5. Considering such submissions, the Petitioner is given liberty to surrender before the learned court in seisin over the matter in the aforesaid case in the first hour within 21 working days hence and move for bail. On such event, the learned Magistrate shall consider his application for bail in the first hour strictly on the basis of the materials on record. In case of rejection of the bail application, the Petitioner may move for bail before the higher forum in the second hour. On such event, the higher forum shall consider and dispose of the bail application of the Petitioner the same day strictly on the basis of the materials on record, by maintaining the principles of parity, if applicable.

6. The case diary be made available on the date of surrender on an application being filed by the Petitioner prior to his date of surrender along with a copy of today's order. Records be transmitted to the higher forum at the cost of the Petitioner, if applied for.

7. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

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(A.K. Mohapatra)
Vacation Judge

Anil

Signature Not Verified
Digitally Signed
Signed by: ANIL KUMAR SAHOO
Reason: Authentication
Location: High Court of Orissa
Date: 24-Oct-2026 19:30:52